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Case Number: 24PSCV02798 Hearing Date: July 16, 2026 Dept: 6

CASE

NAME: Zijie

Zhuo v. Hsiang Chen Woodby

Randall

Y. Hong of BWA Law Group APC's Motion to be Relieved as Counsel for Defendant

Hsiang Chen Woodby

TENTATIVE

RULING

The Court GRANTS Randall Y. Hong of BWA Law Group APC's Motion to be Relieved as Counsel for Defendant Hsiang Chen Woodby. The Court will sign the proposed order and ORDERS Counsel to serve the signed order on Defendant's last known address and file proof of service within five calendar days of this order.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a breach of contract case. On August 28, 2024, plaintiff Zijie Zhuo (Plaintiff) filed this action against defendant Hsiang Chen Woodby (Defendant), Uetek, and Does 1 to 10, alleging one cause of action for breach of contract. On August 11, 2025, Plaintiff filed the operative Second Amended Complaint (SAC) against Defendant and Uetek, alleging one cause of action for breach of contract and two causes of action for common counts. On February 5,

2026, Plaintiff dismissed Uetek from this action with prejudice.

On June 9, 2026, Randall Y. Hong of BWA Law Group APC's Motion to be Relieved as Counsel for Defendant Hsiang Chen Woodby. The motion is unopposed.

LEGAL

STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all parties that have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).)

DISCUSSION

Randall Y. Hong of BWA Law Group APC (Counsel) seeks to be relieved as counsel for Defendant Hsiang Chen Woodby on the grounds that Defendant has died and there is no substitute representative or successor in interest known at this time. (Hong Decl., ¶ 2.) The Court finds this proper grounds for withdrawal. "Where a defendant dies and no personal representative is substituted, any judgment rendered is in excess of the court's jurisdiction to try the case. [Citations.]" (*Herring v. Peterson* (1981) 116 Cal.App.3d 608, 611-612.) Grounds for permitting an attorney to withdraw from representation also include the client's conduct that, "renders it unreasonably difficult for the lawyer to carry out the representation effectively[.]" (Rules of Professional Conduct, rule 1.16, subd. (b)(4).)

Counsel has also submitted the notice of motion and motion, declaration, and proposed order on Judicial Council forms MC-051, MC-052, and MC-053. (Cal. Rules of Court, rule 3.1362, subds. (a), (c),

(e.) The Court finds that everything is in order.

Based on the foregoing, the Court GRANTS the motion.

CONCLUSION

The Court GRANTS Randall Y. Hong of BWA Law Group APC's Motion to be Relieved as Counsel for Defendant Hsiang Chen Woodby. The Court will sign the proposed order and ORDERS Counsel to serve the signed order on Defendant's last known address and file proof of service within five calendar days of this order.

Counsel
is ordered to give notice of the Court's ruling within five calendar days of this order.